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बार कौंसिल ऑफ इन्डिया
BAR COUNCIL OF INDIA

21, राउज़ एवन्यू, इन्सटीटूशनेल एरिया
नई दिल्ली - 110 002
21, Rouse Avenue Institutional Area
New Delhi - 110 002

BCI:D: 792 /2008(LE/RTI)

11th July 2008

Shri Jadab Kumar Pal,
Qr. No.B-4/3, 1ST Floor ,
ISI Campus, 205 B.T. Road,
Kolkata-700 108.

Ref: Your letter dated 11.6.2008.

Sir,

With reference to your above mentioned letter under Right To Information Act 2005 I would like to inform you as follows:

Query No.1: I am enclosing a xerox copy of letter dated 24.1.2008 of Smt. S.K. Pal with inword entry Register number and endorsement on the same.

Query No.2: Rule 8, IN section B of the Bar Council of India in Part IV prescribes the following qualifications for law teachers.

> "Full time teachers of law including the Principal of the College shall ordinarily be holders of a Master's degree in law and where the holders of Master's degree in law are not available, persons with teaching experience for a minimum period of five years in law may be considered. Part time teaching other than one with LL.M. Degrees shall have a minimum practice of 10 years at the Bar."

However, there is no penal provision as indicated in your query.

Query No.3: I am enclosing a copy of the application submitted by RGSOIPL, IIT, Kharagpur seeking approval of affiliation of the Bar Council of India for the five year law course.

Query No.4: RGSOIPL, IIT, Kharagpur has not submitted any Annual Returns for the years 2006-2007 and 2007-2008 to the Bar Council of India.

Query No.5: Bar Council of India has so far not relaxed Rule 8 of "Section-B" of the Bar Council of India Rules in Part IV regarding Standards of Legal Education and Recognition of Degrees in Law for admission as advocates for RGSOIPL, IIT, Kharagpur.

As regards Query No.6, it may be noted that under the Advocates' Act 1961 for enrolment as an advocate, candidate should possess LL.B. Degree of a University recognized by the Bar Council of India. It goes without saying that LL.B. degree possessed by the law teachers should be recognized by the Bar Council of India.

Query No.7: Bar Council of India does not have any authentic information about the query raised by you whether Rules of reservation for appointment in public service is applicable to RGSOIPL. This information has to be obtained from RGSOIPL, IIT, Kharagpur Copy of a letter written to RGSOIPL, IIT, Kharagpur in this regard is sent herewith.

Query No.8: Bar Council of India has no power to relax Govt. of India Rules of reservation for appointment of teachers in RGSOIPL

Receipt No. 5531 dated 11.7.2008 for Rs.10/- (Rupees Twenty Only) sent by you towards application fee is sent herewith.

Yours faithfully

(S. RADHAKRISHANAN)
SECRETARY.

Encl : As above.